



POLICE DEPARTMENT

December 30, 2014

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Rolando Gomez
Tax Registry No. 900086
30 Precinct
Disciplinary Case No. 2013-10424

The above-named member of the Department appeared before me on November 14, 2014, charged with the following:

1. Said Police Officer Rolando Gomez, assigned to the 30 Precinct, on or about May 8, 2013, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer divulged the existence of a confidential investigation concerning an Auxiliary Police Officer to the subject of that investigation. (*As amended*) P.G. 203-10, Page 1, Paragraph 3 & 5
GENERAL REGULATIONS PUBLIC CONTACT – PROHIBITED CONDUCT
2. Said Police Officer Rolando Gomez, assigned to the 30 Precinct, on or about May 8, 2013, failed to follow an order given by a superior officer, to wit: said Police Officer divulged the existence of a confidential investigation to the subject of the investigation, after being directed by Sergeant Michael Guzzino to not disseminate this information. P.G. 203-03, Page 1, Paragraph 2 – GENERAL REGULATIONS COMPLIANCE WITH ORDERS

The Department was represented by Rudolph Behrmann, Esq., Department Advocate's Office, and Respondent was represented by Michael A. Martinez, Esq. Respondent admitted having engaged in the charged misconduct. Accordingly, Respondent is found Guilty of the charges. At the hearing, Respondent provided testimony in mitigation of the penalty. Upon review of the record in its entirety, this tribunal recommends the forfeiture of 25 vacation days as the appropriate penalty. A

stenographic transcript of the record has been prepared and is available for the Police Commissioner's review.

SUMMARY OF EVIDENCE

For the past ten years Respondent has served as the auxiliary police officer coordinator for the 30 Precinct. At present, he oversees a unit of approximately 100 civilian volunteers who assist the precinct with specified details and assignments. Respondent testified that he is responsible for the performance and conduct of these volunteers. As such, he trains, schedules, monitors, evaluates, investigates and disciplines or promotes the members of this unit. (Tr. 5-9)

On May 8, 2013, Respondent received a call from Internal Affairs Bureau (IAB) Sergeant Michael Guzzino concerning allegations against Auxiliary Police Officer [REDACTED]. [REDACTED] Sergeant Guzzino informed Respondent that they were about to close an investigation concerning an off duty altercation and wanted to find out about the auxiliary's "character." Respondent spoke with the IAB sergeant for a few minutes and told him that he thought highly of the auxiliary. Although Respondent pled guilty to failing to follow an order not to divulge a confidential investigation, during direct examination Respondent stated that he did not recall whether Sergeant Guzzino issued that order. During cross examination, however, he conceded that Sergeant Guzzino "probably" did.

Respondent admitted at trial that immediately after the IAB call he contacted the auxiliary and divulged that IAB was investigating the incident. Respondent explained that he contacted the auxiliary because he was "responsible for [his] on duty and off duty behavior" and he "needed" to "find out what happened during that day." Respondent conceded that having made that call was a mistake. It is undisputed that the auxiliary was

terminated from the program after having served as an auxiliary police officer for 17 years. (Tr. 9-16)

PENALTY

To determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 26, 1991. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

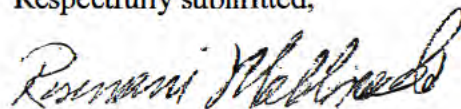
The Department seeks a penalty of 25 vacation days in this case. Respondent argues that the forfeiture of vacation days is excessive because he is a 23 year veteran with a solid record who understands what he did wrong. Respondent's counsel also offered as mitigation the fact that Respondent acted out of a sense of responsibility because under normal circumstances it would have been his job to confront an auxiliary police officer against whom a complaint had been made. Furthermore, Respondent took the stand to explain that this penalty would have an adverse impact on his family by disrupting a planned vacation.

Respondent, however, has admitted to two very serious charges of misconduct. Patrol Guide Section 203-10, page 1, para. 3 clearly states that, "Divulging or discussing official Department business, except as authorized" is prohibited. As an experienced police officer, Respondent should have known that he was not authorized to disclose an ongoing IAB investigation with anyone, particularly the subject of the investigation. Furthermore, despite his wavering at trial, Respondent pled guilty to failing to follow a

superior officer's order not to disseminate information about the investigation to the subject.

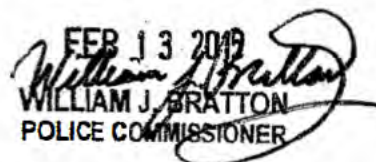
Although this tribunal understands that under ordinary circumstances Respondent would have investigated complaints that came to him concerning his auxiliary police officers, it was clear that this was an IAB case and not his case. Failing to obey a direct order under these circumstances is a serious offense. In light of Respondent's prior misconduct, this tribunal recommends the forfeiture of 25 vacation days as the appropriate penalty. This penalty is consistent with prior penalties issued for similar misconduct. *Disciplinary Case No. 72985/98* (signed 01/06/01)(Sixteen-year member with no prior disciplinary record forfeits 30 vacation days for wrongfully divulging information about an ongoing IAB investigation to the subject of that investigation); *Disciplinary Case No. 80292/04*, (signed 06/13/05)(Twenty-year member with no prior disciplinary record forfeits 20 vacation days for wrongfully divulging information pertaining to an IAB investigation to a non-IAB MOS)

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner of Trials

APPROVED

FEB 13 2019

WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT

CITY OF NEW YORK

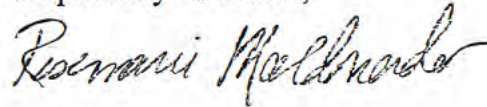
From: Deputy Commissioner of Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER ROLANDO GOMEZ
TAX REGISTRY NO. 900086
DISCIPLINARY CASE NO. 2012-10424

In 2011 and 2013, Respondent received an overall rating of 3.0 "Competent" on his annual performance evaluation. He was rated 3.5 "Highly Competent/Competent" in 2012. He has been awarded two medals for Excellent Police Duty. [REDACTED]
[REDACTED]
[REDACTED]

Respondent has been the subject of one prior adjudication. In 2008, he pled guilty to engaging in unauthorized off-duty employment and neglecting to make notifications after becoming aware of an allegation of missing or stolen property from a Department facility. For this misconduct, he forfeited 30 vacation days.

For your consideration.

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner of Trials